IN THE DISTRICT COURT 1, MADINA, HELD ON THURSDAY, 4TH JUNE, 2025

BEFORE HER WORSHIP ROSEMARY ABENA GYIMAH AS MAGISTRATE

SUIT NO: A9/181/2024

MRS. ANNE-MARIE GODWYLL .... PLAINTIFF
No. 20A Kinshasha Avenue,
East-Legon, Accra.

VRS.

1. **MR. MICHEL BOWMAN AMUAH .... DEFENDANTS**
2. **PETRINA ADOMA FRIMPONG**

(All of No. 20 B Kinshasha Avenue,
East-Legon,Accra)

……..……

JUDGMENT

……...……

INTRODUCTION

It is the Plaintiff's case that being the landlady of the Defendants, sometime in December 2022, she entered into a tenancy agreement with the Defendants to rent her premises; House No. 20B Kinshasha Avenue, East Legon for six (6) months which was scheduled to commence from January 2023 to June 2023 at an agreed rent of **Nine Hundred Dollars ($900.0)** per month. After the expiration of the six (6) months, the Defendants extended their stay to July of the same year and paid rent covering all that period.

The Defendants have since then failed and refused to pay rent from August 2023 to date (March 2024). Despite several demands by the Plaintiff for the Defendants to pay **Seven**

Thousand Two Hundred Dollars ($7,200.00) being rent for the period from August 2023 to March 2024 as a result the Plaintiff issued a writ against the Defendants on 4th April 2024 seeking the following reliefs;

1. An order of ejection directed at the Defendants to vacate premises of Plaintiff.
2. Recovery of possession.
3. An order of the Court directed at the Defendants to pay to the Plaintiff an amount of $7,200.00 which is rent overdue from August 2023 to March 2024.
4. An order of the Court directed at the Defendants to pay to the Plaintiff all rents that will be due until Defendants leave or the final determination of this suit and Defendants are evicted.
5. Damages for loss of use.
6. Cost including cost of legal fees.
7. Any other Order(s) this Honourable Court may deem fit.

The Defendants; a married couple, an Engineer and Lawyer respectively say that they have since 6th April 2024 vacated Plaintiff's said premises. However the agreed rent between parties for the initial six (6) months period of January 2023 to June 2023 was **Fifty One Thousand Three Hundred Ghana Cedis (GHS51,000.00)** equivalent to **Five Thousand Four Hundred Dollars ($5,400.00)** at the time material. The Defendants say after making the initial deposit of **Forty Seven Thousand Ghana Cedis (GHS47,000.00)** on 21st December 2022 with the promise of paying the balance of **Four Thousand Three Hundred Ghana Cedis (GHS4,300.00)** to the Plaintiff by 18th January 2023, which they did, and after being granted leave to take possession of the property, they carried out some remedial works to make the property habitable before moving into occupation of Plaintiff's premises in the first week of January 2023. The Defendants say that the remedial works were done at a cost of **Twenty Eight Thousand Ghana Cedis (GHS28,000.00).** The Defendants state that after their tenancy expired they paid rent for an additional month; July 2023. Furthermore the Defendants say that they indeed sought

an extension from the Plaintiff of which same was granted to them to occupy Plaintiff's premises for an additional six (6) months from 1st August 2023 till the Plaintiff interfered.

The Defendants in their Statement of Defence filed on 30th April 2024 admit that the total rent due from August 2023 to March 2024 is **Seven Thousand Two Hundred Dollars ($7,200.00)** out of which they had paid to the Plaintiff an amount of **Five Thousand Dollars ($5,000.00)** causing the Defendants to be currently indebted to the Plaintiff in the sum of **Two Thousand Five Hundred Dollars ($2,500.00)** as balance outstanding on the rent for the additional extension of their tenancy from August 2023 to end of March 2024.

The Defendants say that while they were in occupation of the Plaintiff's property as tenants, the Plaintiff interfered with their right to privacy and did not grant them peaceable enjoyment of the property. It is the Defendants' case that the Plaintiff is not entitled to her reliefs except only to the relief of **Two Thousand Five Hundred United States Dollars (US$2,500.00)** which they are prepared to pay to the Plaintiff if the Plaintiff would oblige them. As a result the Defendants counterclaim against the Plaintiff as follows;

I. Damages for interference with the Defendants' privacy and not granting them peaceable enjoyment of their tenancy.
II. Cost of remedial works which was carried out by the Defendants on the Plaintiff's property amounting to GHS28,000.00 being the cost of repairs that had to be undertaken on the house to put it in tenantable condition.
III. Costs including Solicitor's fees
IV. Any other Order(s) that this Honourable Court may deem fit.

The Plaintiff on 10th June 2024 filed a reply and defence to counterclaim and denied the Defendants' averments, stating that the Defendants are not entitled to the reliefs as contained in their counterclaim. The Plaintiff however stated that the Defendants' had after the commencement of this suit vacated the Plaintiff's premises and paid to the

Plaintiff an amount of **Five Thousand Dollars ($5,000.00)** leaving an outstanding amount of **Two Thousand Five Hundred Dollars ($2,500.00)** as rent from 1st August 2023 to 9th April 2024.

The Plaintiff on on 10th June 2024 filed a motion on notice for judgment on admission based on Defendants' admission under paragraphs 29, 33 and 35 of their statement of defence and counterclaim, that the total rent due to the Plaintiff from August 2023 to March 2024 is **Seven Thousand Two Hundred Dollars ($7,200.00)** out of which they had since paid to the Plaintiff an amount of **Five Thousand Dollars ($5,000.00)** leaving an outstanding balance of **Two Thousand Five Hundred Dollars ($2,500.00)** which the Plaintiff is entitled to and the Defendant's are ready to pay to the Plaintiff. The Defendants filed their affidavit in opposition to same on 29th August 2024.

On 3rd September 2024 after the Court had heard both parties on the said application for judgment on admission, the Court granted same as follows;

a. Plaintiff to recover an amount of **Two Thousand Five Hundred United States Dollars (US$2,500.00)** or the Cedi equivalent of same using the exchange rate of the Cedi to Dollar as at April 2024
b. Plaintiff to recover the said amount together with interest at the prevailing interest rate on the United States Dollar in the United States of America which is influenced by the rates set by the Federal Bank Reserve Board from April 2024 till date of payment.
c. The Defendant to pay same in three (3) equal installments beginning 30th September 2024 and ending 30th November 2024.

The Defendants prayed to proceed on their counterclaim against the Plaintiff and same was granted and parties were ordered to file their witness statements for trial. The Defendants filed a witness statement of the 2nd Plaintiff on behalf of the

Defendants on 21st January 2025. The Plaintiff did not file any witness statement and did not adduce any evidence in respect of Defendants' counterclaim.

As a result this judgment is to make a determination on whether or not the Defendants are entitled to their reliefs as endorsed on their counterclaim filed on 30th April 2024.

APPLICABLE LAWS AND ANALYSIS

Proof in Civil Actions

Burden Of Proof

In **Fred Reimmer v Pastor Baffour, Suit No.FAL 314/11 dated 23 June 2017**, Sittie J, restated the position of the law on burden of proof as follows ;

> ***"The position of the law on evidence in civil cases is that a party must win his case on the preponderance of probabilities. Section 11, 12 and 14 of NRCD 323 refers.***

The nature of the standard of proof required of a party in a suit, was succinctly stated by Ollenu J, (as he then was), in the case of **Majolagbe v. Larbi & Ors. [1959] GLR 190** as follows,

> ***"Here I may repeat what I stated in the case of Khoury and Anor. v. Richter on this question of proof. That judgment was delivered on the 8th December, 1958 and the passage in question is as follows:-***
>
> > ***Proof in law is the establishment of facts by proper legal means. Where a party makes an averment capable of proof in some positive way, e.g. by producing documents, description of things, reference to other facts, instances, or circumstances, and his averment is denied, he does not***

> ***prove it by merely going into the witness-box and repeating that averment on oath, or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances, from which the Court can be satisfied that what he avers is true."***

In **Broadview Capital v. Bigma Enterprise and Another (2017) JELR 67795 (HC)**, the Court speaking through His Lordship Justice Bartels - Kodwo on the principle that he who asserts must prove stated as below;

> ***"Per the rules of evidence as backed by judicial pronouncements he who asserts must prove. More so when his opponent denies his assertion. This burden must be discharged on the preponderance of probabilities. Kpegah J. A. (as he then was) in ZABRAMA VRS. SEGBEDZI [1991] 2GLR 221 at 224 held thus:***
>
> > ***"A person who makes an averment or assertion which is denied by his opponent, has the burden to establish that his averment or assertion is true. And he does not discharge this burden unless he leads admissible and credible evidence from which the fact or facts he asserts can properly and safely be inferred. The nature of each averment or assertion determines the nature of the burden"***

In **In Re Ashalley Botwe Lands; Adjetey Agbosu v Kotey (2005-2006) SCGLR 420** the Court stated the duty of a Plaintiff in a suit as follows:

> ***"In civil cases a litigant who is a defendant does not need to prove anything. It is the plaintiff who took the defendant to court who has to prove what he claims he is entitled to from the defendant."***

<u>EVALUATION AND ANALYSIS</u>

It is the Defendants' claim that the Plaintiff denied them peaceable enjoyment of the property and that they incurred a cost of **Twenty Eight Thousand Ghana Cedis (GHS28,000.00)** in carrying out remedial works on Plaintiff's premises as such they are entitled to their reliefs as endorsed on their counterclaim. This the Plaintiff vehemently denied placing a burden on the Defendants to adduce sufficient evidence in support of their claim.

There is no gainsaying that proceeding on the Defendants' counterclaim, the Defendants now assume the position of Plaintiffs and the Plaintiff, the Defendant. As such beyond the Plaintiff (Defendant to counterclaim) denying the claims of the Defendants (Plaintiffs to counterclaim), the Plaintiff (Defendant to counterclaim) does not need to prove anything but rather the Defendants (Plaintiffs to counterclaim) are to prove what they claim they are entitled to from the Plaintiff (Defendant to counterclaim) as pithily captured by the Supreme Court in **In Re Ashalley Botwe Lands; Adjetey Agbosu v Kotey (supra)**

At trial, during their evidence in chief, the 2nd Defendant merely repeated the averments of the Defendants on oath with regards to the Defendants' assertion that the Plaintiff denied them peaceable enjoyment of the property.

Again, the 2nd Defendant on behalf of the Defendants tendered in **Exhibit A**; an invoice from Alfred Odotei Sowah Electricals dated 2nd January 2023 as proof that the Defendants incurred expense of an amount of **Twenty One Thousand and Thirty Two Ghana Cedis and Eighty Pesewas (GHS21,032.80)** to rewire large sections of the house because the circuit breaker box and power distribution channel had been so overloaded that the power was dangerously tripping all the time and again merely repeated on oath that the Defendants incurred a cost of **Twenty Eight Thousand Ghana Cedis (GHS28,000.00)** in carrying out remedial works on Plaintiff's premises.

From the evidence adduced by the Defendants before this Court I find that the Defendants have not been able to adduce cogent evidence to convince this Court on the balance of probabilities that indeed they are entitled to their claims before this Court.

For if indeed the Defendants incurred additional expense of an amount of **Twenty Eight Thousand Ghana Cedis (GHS28,000.00)** in putting Plaintiff's premises in a tenantable condition prior to moving in to Plaintiff's premises within the first week of January 2023 and same was agreed upon;

a. Why did the Defendants fail to ensure that the said amount was factored into their final installment of an amount of **Four Thousand Three Hundred Ghana Cedis (GHS4,300.00)** being the balance of the outstanding rent for the initial six (6) months period of January 2023 to June 2023, which said payment the Defendants say was made by 18th January 2023?

b. Why again did the Defendants fail to raise this issue of additional expense to the Plaintiff when the Plaintiff served them with a notice to vacate Plaintiff's premises in December 2023?

It is also important to note that from a careful study of **Exhibit A**, the Court is unable to ascertain that the said amount of **Twenty One Thousand and Thirty Two Ghana Cedis and Eighty Pesewas (GHS21,032.80)** which the Defendants claim was incurred was actually applied to the Plaintiff's premises to put same in a tenantable condition. In **Marian Obeng Mintah v Francis Ampenyin (2015) JELR 68940 (SC)**, in evaluating the evidence of a party who claimed to have contributed towards the construction of a house, the Supreme Court held that the claimant could not establish by way of evidence her contribution. The Supreme Court stated as follows;

"The unchallenged evidence on record is that almost all the ATM withdrawals made from the account in question were made by the appellant. There is however no corresponding evidence that the joint proceeds were utilised for the continuation or completion of the respondent's building works particularly in the light of the respondent's denials. The few receipts that were tendered by the appellant such as exhibit K, O, Q, R and S were cheque payments made into the respondent's account. The exhibit T series are all bank statements of the respondent's accounts.

The only receipt evidencing any purchase is exhibit L but it bears the name of the respondent and not the appellant. The appellant also tendered exhibit A which is a Ledger Account of her transactions with Metrostar Wood Processing Company. Also tendered was exhibit G, evidencing a quantity of Ceiba plywood supplied to the appellant. Unfortunately however exhibit G is only a waybill which does not indicate destination of the material. The appellant failed to link any of the exhibits to any undertaking on the respondent's building. Against these lapses in the evidence tendered by the appellant and her own admission to the effect that the room she occupied had no louvres, it is difficult to come to any other conclusion than that arrived at by the Court of Appeal that the appellant failed to show that she had made any contribution towards the improvement of the respondent's building. This is the more compelling given the fact that all the works she claimed to have undertaken in contribution to the building, such as plastering of the outer building and the floors, ceiling works, electrical wiring and provision of electricity, provision of water into the premises are all work items capable of proof either by receipts of specific purchases or by corroborative testimony of artisans who carried out the works and what charges or payments were made."

CONCLUSION

In conclusion, on the totality of the evidence adduced before me, I am unable to enter judgment in favour of the Defendants in respect of their counterclaim.

In the circumstance, the counterclaim of the Defendants fails and is accordingly dismissed.

No award as to cost.

SGD
H/W ROSEMARY ABENA GYIMAH